

****14.09.2023.****

The Agency for the Protection of Personal Data has imposed two administrative monetary fines on data controllers, commercial companies engaged in gambling and betting activities, in the amounts of 20,000.00 euros (150,690.00 kuna) and 30,000.00 euros (226,035.00 kuna), due to three established violations of the General Data Protection Regulation in both cases:

The data controllers collected and processed personal data of respondents, i.e., visitors to the website, through cookies without a legal basis, thereby violating Article 6, paragraph 1 of the General Data Protection Regulation. Namely, in order for the processing of personal data to be lawful, at least one of the legal bases from the relevant article must exist, which in this specific case the data controllers did not fulfill, i.e., they did not prove the existence of a legal basis for the processing of personal data through cookies (eng. cookies – small files that the Internet browser stores on a computer, mobile device, or any other device used by the respondent to visit websites, thereby remembering and tracking their further actions on the websites, and this processing also relates to aspects of personal data).

Furthermore, the data controllers did not adequately inform the respondents, nor did they enable the respondents to give and/or withdraw consent in a sufficiently informed manner, i.e., voluntarily, thereby violating Article 7 of the General Data Protection Regulation. Namely, for each type of cookie based on their functionality, a separate consent must be given, i.e., consent cannot be combined for all types of cookies, and in the specific cases, there was no option for separate giving/withdrawing of consent for each type of cookie.

It was established that the data controllers did not adequately inform the respondents (visitors to the websites) about the processing of personal data, i.e., about the processing of data through cookies, thereby violating Article 13, paragraphs 1 and 2 of the General Data Protection Regulation. Namely, regarding the processing in question, the data controllers did not inform the respondents in accordance with the principle of transparency, thus the respondents (visitors to the websites) were deprived of information about data processing such as the legal basis, the function of each cookie, and the retention period of cookies.

In deciding on the imposition of administrative monetary fines and their amounts, attention is paid to the provisions set out in Article 83, paragraph 2 of the General Data Protection Regulation, such as the nature, gravity, and duration of the infringement; whether the infringement has the characteristic of intent or negligence; the degree of responsibility of the data controller, etc.

More about the processing of personal data through cookies can be found at the link <https://azop.hr/obrada-osobnih-podataka-kolacici/>, as well as in the Cookie Guide.